

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201610537	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/24/2015 10:30 PM	Location of Incident: Fordham Road and Jerome Avenue and § 87(2)(b)	18 Mo. SOL 12/24/2016	Precinct: 52
Date/Time CV Reported Thu, 12/22/2016 11:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/28/2016 11:34 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Johnny Castillo	05895	948523	052 PCT
2. POM Brian Orts	08049	955281	052 PCT
3. POM Brian Doherty	12054	954743	052 PCT
4. POM Thomas Oconnell	17612	955269	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Keslyn Grant	18149	954891	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Johnny Castillo	Force: At Fordham Road and Jerome Avenue in the Bronx, Police Officer Johnny Castillo used physical force against § 87(2)(b)	A . Unfounded
B . POM Johnny Castillo	Discourtesy: At Fordham Road and Jerome Avenue in the Bronx, Police Officer Johnny Castillo spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Brian Orts	Abuse: At § 87(2)(b) in the Bronx, Police Officer Brian Orts did not obtain medical treatment for § 87(2)(b)	C . Unfounded
D . POM Brian Doherty	Abuse: At § 87(2)(b) in the Bronx, Police Officer Brian Doherty did not obtain medical treatment for § 87(2)(b)	D . Unfounded
E . POM Thomas Oconnell	Abuse: At § 87(2)(b) in the Bronx, PO Thomas Oconnell did not obtain medical treatment for § 87(2)(b)	E . Unfounded
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with IAB via phone on December 22, 2016, generating log number 16-44788. The complaint was received at the CCRB on December 28, 2016, via log number 2016-45141.

On June 24, 2015, at approximately 10:30 p.m., PO Johnny Castillo of the 52nd Precinct stopped § 87(2)(b)'s vehicle for reckless driving near the intersection of West Fordham Road and Jerome Avenue in the Bronx (BR 01). § 87(2)(b) admitted to PO Castillo that he was under the influence of alcohol, and PO Castillo allegedly opened § 87(2)(b)'s car door, grabbed the back of his neck, and pulled him out of his vehicle to the ground (**Allegation A**). § 87(2)(b) allegedly landed on his right shoulder, causing pain to his shoulder. PO Brian Orts and PO Keslyn Grant of the 52nd Precinct approached the car stop as PO Castillo removed § 87(2)(b) from the car. PO Castillo placed § 87(2)(b) under arrest for driving while intoxicated, and PO Castillo allegedly said, "Because of assholes like you, there are fatalities" (**Allegation B**).

§ 87(2)(b) allegedly asked to go to the hospital due to his injured shoulder, and PO Castillo told § 87(2)(b) that he would be transported to the hospital to receive a blood test to confirm his intoxication. PO Orts transported § 87(2)(b) to § 87(2)(b) via ambulance, and PO Thomas O'Connell and PO Brian Doherty of the 52nd Precinct met PO Orts at the hospital. At the hospital, § 87(2)(b) alleged that he asked all of the officers to see a doctor for his injured shoulder, and the officers refused to allow him to see a doctor for that injury (**Allegations C, D, and E**).

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation because § 87(2)(b) filed a notice of claim with the City of New York in regards to this incident (BR 02). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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§ 87(2)(b)

Civilian and Officer CCRB Histories

§ 87(2)(b) filed two prior CCRB complaints § 87(2)(b)

§ 87(2)(b)

PO Castillo has been a member of the NYPD for seven years and has been the subject of eight prior CCRB complaints involving 20 allegations, none of which were substantiated. § 87(2)(b)

§ 87(2)(b)

PO Doherty has been a member of the NYPD for three years and has been the subject of five prior complaints involving nine allegations, three of which were substantiated. PO Doherty has two substantiated stop allegations from case 201510362 and one substantiated stop allegation from case 201605007. § 87(2)(g)

§ 87(2)(g)

PO O'Connell has been a member of the NYPD for three years and has been the subject of three prior CCRB complaints involving seven allegations. PO O'Connell has two substantiated stop allegations from case 201510362. § 87(2)(g)

§ 87(2)(g)

This is PO Orts' first CCRB complaint in his three year tenure as an NYPD officer.

Potential Issues

§ 87(2)(b)'s complaint was received at the CCRB on December 28, 2016, four days beyond the statute of limitations. § 87(2)(g)

§ 87(2)(b) stated that his cousin was inside of his vehicle during the incident, but § 87(2)(b) did not know his cousin's name or contact information. As such, § 87(2)(b)'s cousin was not interviewed.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) could not identify or describe the three officers who refused to obtain medical treatment for him at § 87(2)(b) PO Orts, PO Doherty, and PO O'Connell acknowledged that they were at the hospital during the incident, and they were the only officers listed as responding to the hospital in the police documentation of this incident. § 87(2)(g)

Allegation A –Force: At Fordham Road and Jerome Avenue in the Bronx, Police Officer Johnny Castillo used physical force against § 87(2)(b)

According to § 87(2)(b) he consumed two to three shots of Hennessy at an unknown bar in the Bronx prior to driving. § 87(2)(b) then drove his car with his cousin in the front passenger's seat toward his cousin's house to drop him off. PO Castillo stopped § 87(2)(b) at Fordham Road and Jerome Avenue, and PO Castillo informed § 87(2)(b) that he stopped him because he was driving recklessly. PO Castillo then asked whether § 87(2)(b) had been drinking, and § 87(2)(b) acknowledged that he "had a few drinks" prior to driving. § 87(2)(b) alleged that PO Castillo immediately opened his car door, grabbed the back of his neck, and pulled him out of the car to the ground. § 87(2)(b) did not see any other officer in his vicinity during his arrest.

§ 87(2)(b) alleged that he fell to the ground on his right shoulder, that he experienced pain to that shoulder, and that he requested to go to the hospital as a result of that pain. § 87(2)(b) alleged that he was transported to § 87(2)(b) from the scene but that PO Orts, PO O'Connell, and PO Doherty refused to provide him access to a doctor to treat his injured shoulder (**Discussed in Allegations C, D, and E**). § 87(2)(b) alleged that the officers told him that he was only at the hospital to undergo blood tests due to his intoxication.

PO Castillo stated that he stopped § 87(2)(b) because he observed § 87(2)(b) swerve back and forth between traffic lanes without activating his turn signal (BR 05-09). According to PO Castillo, § 87(2)(b) acknowledged that he had been drinking, and PO Castillo asked him to step out of the car. PO Castillo stated that § 87(2)(b) exited his vehicle of his own accord, and PO Castillo denied pulling § 87(2)(b) out of the car or using any physical force against him.

PO Orts and PO Grant responded to the incident location to provide backup. Both officers observed § 87(2)(b) exit his car of his own accord, and neither officer witnessed any incident in which PO Castillo pulled § 87(2)(b) out of the car or used physical force against him.

According to the officers, PO Orts and PO Castillo transported § 87(2)(b) to the 45th Precinct stationhouse for DUI testing while PO Grant remained on patrol. The officers denied that § 87(2)(b) was transported to the hospital from the scene of the incident. PO Orts and PO Castillo stated that § 87(2)(b) was placed in a holding cell inside the 45th Precinct stationhouse at

which time he spat repeatedly on the walls, verbally threatened other prisoners, and stated that he would fight any officer who entered his cell. § 87(2)(b) also refused to consent to DUI testing.

PO Orts and PO Castillo stated that they called for the assistance of ESU officers and EMS workers to transport § 87(2)(b) to the hospital as an emotionally disturbed person. Upon the arrival of ESU officers, § 87(2)(b) became compliant and allowed the officers to remove him from the cell and place him in an ambulance. PO Orts accompanied § 87(2)(b) to the hospital, and he was relieved by PO O’Connell and PO Doherty shortly thereafter. The officers denied that § 87(2)(b) ever complained that he injured his shoulder during the incident.

§ 87(2)(b)’s DUI testing paperwork confirmed that § 87(2)(b) refused to consent to DUI testing at the stationhouse (BR 10). The prisoner holding pen roster also confirmed that § 87(2)(b) was transported to the § 87(2)(b) from the 45th Precinct and not from the scene of the incident (BR 11). § 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation B – Discourtesy: At Fordham Road and Jerome Avenue in the Bronx, Police Officer Johnny Castillo spoke discourteously to § 87(2)(b)

While allegedly lying on the ground in handcuffs, § 87(2)(b) stated that PO Castillo said, “Because of assholes like you, there are fatalities.”

PO Castillo denied saying, “Because of assholes like you, there are fatalities,” and PO Castillo denied referring to § 87(2)(b) as an “asshole.” Neither PO Orts nor PO Grant heard PO Castillo say, “Because of assholes like you, there are fatalities.”

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Brian Orts did not obtain medical treatment for § 87(2)(b)

Allegation D – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Brian Doherty did not obtain medical treatment for § 87(2)(b)

Allegation E – Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas O’Connell did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that PO Orts, PO Doherty, and PO O’Connell transported him to § 87(2)(b) via ambulance from the scene of his arrest. At the hospital, § 87(2)(b) alleged that he asked all of the officers to see a doctor for his injured shoulder, and the officers refused to allow him to see a doctor for that injury.

The officers stated that PO Orts accompanied § 87(2)(b) to the hospital as an emotionally disturbed person. PO Orts was then relieved by PO O’Connell and PO Doherty shortly after arriving at the hospital. PO Orts denied that any officer refused to provide medical treatment to § 87(2)(b) for his injured shoulder. Neither PO Doherty nor PO O’Connell witnessed § 87(2)(b) request medical treatment from any officer during the incident. PO Doherty did not recall that incident but stated that neither he nor any other officer refused to provide medical treatment to § 87(2)(b). PO O’Connell also denied that he refused to provide medical treatment to § 87(2)(b) during the incident.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation C, D, and E** be closed as **Unfounded**.

§ 87(4-b) § 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

